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Ecology and culture of the pastoral Tuareg

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ECONOMIC OBLIGATIONS ON MARRIAGE IN AYR (KEL FERWAN)

It would seem from all this that the main function of bride-wealth is to create a social bond between two families that intermarry, and is a sort of confirmation of the social rights of the children. When bride-wealth is not taken back at the dissolution of a marriage the marriage is not socially dissolved. When two people divorce they continue to have each other's relations as in-laws with whom they have joking and avoidance exactly as if they were still married, and the children continue to have their full rights within both families.

583
[Mode Of Marriage](#)

586
[Termination Of Marriage](#)

848
[Illegitimacy](#)

The fact that bride-wealth is the outward symbol of the persistence of in-law relations when a marriage is dissolved, discloses the true meaning of bride-wealth, which is more clearly understood when we consider that children of a dissolved marriage, provided the bride-wealth is not claimed back, will belong to the father as long as he is alive, and not to the mother. The mother and her family obtain no right to the children until their father has died. It is further stated by some Tuareg that a child of a dissolved marriage from which bride-wealth is taken back will have no right to inherit its father. Bride-wealth is a symbolic expression of the new bonds established between two families at a marriage, and it places children of this marriage in the father's family until his death, and secures their inheritance rights in respect of the father and his paternal kin. All this seems to agree with the fact that the Northern Tuareg vassals, who give bride-wealth in goats, do not always hand over all animals at a marriage. The full payment may be postponed for some years, but should be accomplished before the birth of a child.

583
[Mode Of Marriage](#)

586
[Termination Of Marriage](#)

848
[Illegitimacy](#)

The explanation I have given of the functional position of Tuareg bride-wealth would seem to be in agreement with Radcliffe-Brown's account of the functional position of the *lobola* payments of South Africa. Radcliffe-Brown says that one of the chief functions of *lobola* is to fix the social position of the children of a marriage. If the proper payment is made by a family, then the children of the woman who comes to them in exchange for the cattle belong to that family (Radcliffe-Brown 1952, p. 30). This is also stated by Krige (cf. Krige 1937, p. 113).

171
Comparative Evidence

583
Mode Of Marriage

586
Termination Of Marriage

848
Illegitimacy

The functional position of Tuareg bride-wealth should perhaps also be viewed in the light of recent investigations on the function of bride-wealth in Middle Eastern societies, where preferential marriage is that to a father's brother's daughter. This preferential marriage type has been explained in different ways by different authors. Westermarck says that marriages with a father's brother's daughter are popular because they keep the property in the family, and especially popular in shereefian families, because they preserve the blood pure (Westermarck 1914, p. 53). The argument that marriage with a father's brother's daughter keeps property within the family has been recognized also by Granquist (cf. Granquist 1931, p. 78), and by many other anthropologists. But this argument is valid only when Koranic law is observed, which is not always the case (F. Barth 1954, p. 170; cf. Murphy & Kasdan 1959, p. 17).

582
Regulation Of Marriage

Wellhausen observed that marriage with a paternal cousin served the purpose of strengthening the kinship tie within the family, and he believed that marriages contracted within a village had the function of solidifying relationships between its inmates (cf. Westermarck 1914, p. 56). Quite recently this viewpoint has been taken up and reformulated by F. Barth who states that marriage with a father's brother's daughter plays a prominent rôle in solidifying the minimal lineage as a corporate group in factional struggle (F. Barth 1954, p. 171), while Murphy and Kasdan, who refer to Barth's study

291
Normal Garb

533
Music

534
Musical Instruments

535
Dance

582
Regulation Of Marriage

Fig. 296. Tuareg women dancing in front of professional musicians of Agadez. Ayr, the *Igendéynen* tribe.



state the converse proposition that it underlies the extreme fission process characteristic of Arab lineage structure the one structural function of the institution promoting the segmentation process. From this point of view feud and fission are not at all dysfunctional factors, but are necessary for the continuity and viability of Bedouin society (Murphy & Kasdan 1959, p. 18). Such theories of marriage with a father's brother's daughter and its functional connection with the political system may contain an important element of truth, though Westermarck was told in Morocco that cousin marriages easily lead to quarrels between the husband's and the wife's families, both of whom want to interfere in the married life of the couple. Furthermore, Westermarck observes that this argument against cousin marriage was used by the Arab poet, Mu'allakāt (Westermarck 1914, p. 54 f.).

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